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Expiration date: 03/31/2027

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**Appendix 1: Lead Agency Implementation Plan
for**

State/Territory Minnesota

FFY 2025 – 2027

Version: Initial Plan

Plan Status: Approved as of 2024-11-09 00:25:06 GMT

For each non-compliance, Lead Agencies must describe the following:

- **Action Steps:** List the action steps needed to correct the finding (e.g., update policy manual, legislative approval, IT system changes, etc.). For each action step list the:
 - o **Expected Completion Date:** List the expected completion date for the action step.
- **Overall Target Date for Compliance:** List date Lead Agency anticipates completing implementation, achieving full compliance with all aspects of the findings. (Note: Compliance will not be determined until the FFY 2025-2027 CCDF Plan is amended and approved).

ELIGIBILITY AND ENROLLMENT:CONTINUITY OF CARE (12-MONTH ELIGIBILITY)

Reason(s) for non-compliance:

- The Lead Agency does not always provide a minimum 12-month eligibility period for each child, as required by 98.21(a)(1). (Plan Questions 2.5.2a and 2.5.2c)
- The Lead Agency does not allow for all permissible temporary changes to parents' work, education, or training status, as required by 98.21(a)(1)(ii)(D). (Plan Question 2.5.2b)
- The Lead Agency does not appropriately limit what families must report during the 12-month eligibility period to allowable information, as required by 98.21(h)(2). (Plan Question 2.5.4)

Overall Target Completion Date: 03/02/2026

Action Step Number	Action Step Description	Target Completion Date
1	Develop legislative proposal and engage with partners.	02/01/2025
2	Manage legislative process and advocate for passage.	05/19/2025
3	Work on electronic system changes (if legislation is passed).	02/01/2026
4	Enact policy change	03/02/2026

EQUAL ACCESS:AFFORDABILITY

Reason(s) for non-compliance:

- The Lead Agency does not limit all family co-payments to seven percent or less of family income, as required by 98.45(l)(3). (Plan Question 3.1.1a). Please note the Lead Agency has an approved waiver for this requirement through October 13, 2025.
- The Lead Agency does not provide data on the extent to which CCDF providers charge families additional amounts above the required co-payment (including data on the size and frequency of such amounts), as required by 98.45(b)(5). (Plan Question 3.1.2eii)

Overall Target Completion Date: 10/13/2025

Action Step Number	Action Step Description	Target Completion Date
1	Develop legislative proposal and engage with partners for seven percent copay item.	02/01/2025
2	Manage legislative process and advocate for passage for seven percent copay item.	05/19/2025
3	Work on electronic system changes (if legislation is passed) for seven percent copay item.	09/01/2025
4	Enact policy change for seven percent copay item	10/13/2025
5	Minnesota submitted a clarifying question to federal Office of Child Care for the data item.	12/12/2024
6	After response is receive for data item, Minnesota will develop a plan to achieve compliance	03/01/2025

EQUAL ACCESS:PAYMENT PRACTICES

Reason(s) for non-compliance:

- The Lead Agency does not pay all provider types prospectively or alternatively does not demonstrate that it is not a generally-accepted practice for all provider types, as required by 98.45(m)(1). (Plan Question 4.4.1a). Please note the Lead Agency has an approved waiver for this requirement through August 1, 2026.
- The Lead Agency does not pay based on enrollment or alternatively does not provide justification that this is impracticable or is not a generally-accepted practice, as required by 98.45(m)(2). (Plan Question 4.4.1b). Please note the Lead Agency has an approved waiver for this requirement through August 1, 2026.

Overall Target Completion Date: 10/12/2026

Action Step Number	Action Step Description	Target Completion Date
1	Develop legislative proposal and engage with partners	02/01/2025
2	Manage legislative process and advocate for passage.	05/19/2025

3	Work on electronic system changes (if legislation is passed.)	09/01/2026
4	Enact policy change.	10/12/2026

EQUAL ACCESS:PAYMENT RATES

Reason(s) for non-compliance:

- The Lead Agency's market rate survey was not developed and conducted within two years of the date of submission of the CCDF Plan and therefore does not certify the percentiles reported in their CCDF Plan are based on their most recent MRS or ACF pre-approved Alternative Methodology, as required by 98.45(c)(1) and 98.45(f)(2)(i). (Plan Questions 4.2.1ai and 4.3.2b)
- The Lead Agency's payment rates for infants in center-based care, infants in family child care homes, preschoolers in center-based care, and preschoolers in family child care homes are not sufficient to ensure equal access, as required by 98.45(a). (Plan Question 4.3.2a)

Overall Target Completion Date: 01/06/2025

Action Step Number	Action Step Description	Target Completion Date
1	Implement new maximum rates based on most recent market rate survey.	01/06/2025
2	Minnesota submitted evidence on January 6, 2025; compliance determination is pending formal approval from Office of Child Care.	01/06/2025

EQUAL ACCESS:PROVIDER OPTIONS FOR PARENTS

Reason(s) for non-compliance:

- The Lead Agency does not provide grants or contracts for direct services for infants and toddlers, for children in underserved geographic areas, and for children with disabilities, as required by 98.30(b)(1). (Plan Questions 4.1.1c and 4.5.1i)

Overall Target Completion Date: 03/01/2025

Action Step Number	Action Step Description	Target Completion Date
1	Minnesota currently meets this requirement through the Migrant Child Care program, through which Minnesota contracts with Tri-Valley Opportunity Council to provide direct care services to migrant children, including infants and toddlers, children in underserved geographic areas, and children with disabilities.	07/01/2024
2	Minnesota will submit an amendment indicating how compliance with this item is currently being met.	03/01/2025

HEALTH AND SAFETY:ADMINISTRATION OF MEDICATION

Reason(s) for non-compliance:

- The Lead Agency has not established a standard for the administration of medication consistent with standards for parental consent for license-exempt family child care homes or license-exempt in-home care, as required by 98.41(a)(1)(iii). (Plan Questions 5.3.3av, 5.3.3avi, 5.3.3bv, and 5.3.3bvi)
- The Lead Agency does not require an annual inspection for license-exempt family child care providers for compliance with a standard for administration of medication consistent with standards for parental consent, as required by 98.42(b)(2)(ii). (Plan Question 5.5.2bi)

Overall Target Completion Date: 04/28/2025

Action Step Number	Action Step Description	Target Completion Date
1	Engage with partners regarding possible changes.	02/01/2025
2	Draft new document/form and make updates to existing documents/forms.	03/01/2025
3	New document/form created and/or updated; plain language and accessibility standards met. Begin using document/form.	04/28/2025

HEALTH AND SAFETY:BUILDING AND PHYSICAL PREMISES SAFETY

Reason(s) for non-compliance:

- The Lead Agency has not established a standard for building and physical premises safety, including the identification of and protection from hazards, bodies of water, and vehicular traffic for license-exempt family child care homes or license-exempt in-home care, as required by 98.41(a)(1)(v). (Plan Questions 5.3.5av, 5.3.5avi, 5.3.5bv, 5.3.5bvi, 5.3.5cv, and 5.3.5cvi)
- The Lead Agency does not require an annual inspection for license-exempt family child care providers for compliance with a standard for building and physical premises safety, including the identification of and protection from hazards, bodies of water, and vehicular traffic, as required by 98.42(b)(2)(ii). (Plan Question 5.5.2bi)

Overall Target Completion Date: 04/28/2025

Action Step Number	Action Step Description	Target Completion Date
1	Engage with partners regarding possible changes	02/01/2025
2	Draft new document/form and make updates to existing documents/forms	03/01/2025
3	New document/form created and/or updated; plain language and accessibility standards met. Begin using document/form.	04/28/2025

HEALTH AND SAFETY:EMERGENCY PREPAREDNESS AND RESPONSE PLANNING

Reason(s) for non-compliance:

- The Lead Agency standard for emergency preparedness and response planning does not include all the required elements for license-exempt family child care homes or license-exempt in-home care, as required by 98.41(a)(1)(vii). (Plan Questions 5.3.7i-x)
- The Lead Agency does not require an annual inspection for license-exempt family child care providers for compliance with a standard for emergency preparedness and response planning, as required by 98.42(b)(2)(ii). (Plan Question 5.5.2bi)

Overall Target Completion Date: 04/28/2025

Action Step Number	Action Step Description	Target Completion Date
1	Engage with partners regarding possible changes.	02/01/2025
2	Draft new document/form and make updates to existing documents/forms.	03/01/2025
3	New document/form created and/or updated; plain language and accessibility standards met. Begin using document/form.	04/28/2025

HEALTH AND SAFETY:HANDLING AND STORAGE OF HAZARDOUS MATERIALS AND DISPOSAL OF BIOCONTAMINANTS

Reason(s) for non-compliance:

- The Lead Agency has not established a standard for the handling and storage of hazardous materials or the appropriate disposal of biocontaminants for license-exempt family child care homes or license-exempt in-home care, as required by 98.41(a)(1)(viii). (Plan Questions 5.3.8av, 5.3.8avi, 5.3.8bv, and 5.3.8bvi)
- The Lead Agency does not require an annual inspection for license-exempt family child care providers for compliance with a standard for handling and storage of hazardous materials and disposal of biocontaminants, as required by 98.42(b)(2)(ii). (Plan Question 5.5.2bi)

Overall Target Completion Date: 04/28/2025

Action Step Number	Action Step Description	Target Completion Date
1	Engage with partners regarding possible changes.	02/01/2025
2	Draft new document/form and make updates to existing documents/forms	03/01/2025
3	New document/form created and/or updated; plain language and accessibility standards met. Begin using document/form.	04/28/2025

HEALTH AND SAFETY:IDENTIFICATION AND REPORTING OF CHILD ABUSE

Reason(s) for non-compliance:

- The Lead Agency does not require an annual inspection for license-exempt family child care providers for compliance with a standard for identification and reporting of child abuse, as required by 98.42(b)(2)(ii). (Plan Question 5.5.2bi)

Overall Target Completion Date: 04/28/2025

Action Step Number	Action Step Description	Target Completion Date
1	Engage with partners regarding possible changes.	02/01/2025
2	Draft new document/form and make updates to existing documents/forms.	03/01/2025
3	New document/form created and/or updated; plain language and accessibility standards met. Begin using document/form.	04/28/2025

HEALTH AND SAFETY:ONGOING TRAINING

Reason(s) for non-compliance:

- The Lead Agency does not require an annual unannounced inspection for licensed centers and licensed family child care providers or an annual inspection for license-exempt centers and license-exempt family child care providers for compliance with ongoing training requirements, as required by 98.42(b)(2)(i)(B) and 98.42(b)(2)(ii). (Plan Questions 5.5.1aii, 5.5.1bii, 5.5.2ai, and 5.5.2bi)

Overall Target Completion Date: 10/01/2025

Action Step Number	Action Step Description	Target Completion Date
1	Develop legislative proposal and engage with partners.	02/01/2025
2	Manage legislative process and advocate for policy change.	05/19/2025

3	Enact policy change, if legislation is passed. NOTE: Target Completion Date is August 1, 2025 for licensed centers, licensed family child care providers, license-exempt centers and October 1, 2025, for license-exempt family child care providers.	10/01/2025
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HEALTH AND SAFETY:PEDIATRIC FIRST AID AND PEDIATRIC CPR

Reason(s) for non-compliance:

- The Lead Agency does not require an annual inspection for license-exempt family child care providers for compliance with a standard for pediatric first aid and pediatric CPR, as required by 98.42(b)(2)(ii). (Plan Question 5.5.2bi)

Overall Target Completion Date: 04/28/2025

Action Step Number	Action Step Description	Target Completion Date
1	Engage with partners regarding possible changes.	02/01/2025
2	Draft new document/form and make updates to existing documents/forms.	03/01/2025
3	New document/form created and/or updated; plain language and accessibility standards met. Begin using document/form.	04/28/2025

HEALTH AND SAFETY:POSTING INSPECTION REPORTS

Reason(s) for non-compliance:

- The Lead Agency does not post full monitoring and inspection reports that include all areas of compliance and non-compliance for licensed centers, licensed family child care providers, license-exempt centers, license-exempt family child care providers, and license-exempt in-home providers, as required by 98.33(a)(4)(ii). (Plan Question 5.5.4aiii). Please note the Lead Agency has an approved waiver for portions of this

requirement through August 1, 2026.

- The Lead Agency does not post pre-licensing inspection reports for licensed centers or licensed family child care providers, as required by 98.33(a)(4). (Plan Question 5.5.4ai)

Overall Target Completion Date: 08/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	Develop legislative proposal and engage with partners regarding changes.	01/14/2025
2	Create development requirements, introduce legislation to secure funding, and advocate for passage.	05/19/2025
3	Develop system changes and engage partners for feedback.	08/01/2026
4	Communicate system changes to partners.	08/01/2026

HEALTH AND SAFETY:PRECAUTIONS IN TRANSPORTING CHILDREN

Reason(s) for non-compliance:

- The Lead Agency has not established a standard for precautions in transporting children for license-exempt family child care homes or license-exempt in-home care, as required by 98.41(a)(1)(ix). (Plan Questions 5.3.9v and 5.3.9vi)
- The Lead Agency does not require an annual inspection for license-exempt family child care providers for compliance with a standard for precautions in transporting children, as required by 98.42(b)(2)(ii). (Plan Question 5.5.2bi)

Overall Target Completion Date: 04/28/2025

Action Step Number	Action Step Description	Target Completion Date
1	Engage with partners regarding possible changes.	02/01/2025
2	Draft new document/form and make updates to existing documents/forms.	03/01/2025

3	New document/form created and/or updated; plain language and accessibility standards met. Begin using document/form	04/28/2025
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HEALTH AND SAFETY:PREVENTION AND CONTROL OF INFECTIOUS DISEASES

Reason(s) for non-compliance:

- The Lead Agency has not established a standard for the prevention and control of infectious diseases for all license-exempt family child care homes or license-exempt in-home care, as required by 98.41(a)(1)(i). (Plan Questions 5.3.1av and 5.3.1avi)
- The Lead Agency does not require an annual inspection for license-exempt family child care providers for compliance with a standard for prevention and control of infectious diseases, as required by 98.42(b)(2)(ii). (Plan Question 5.5.2bi)

Overall Target Completion Date: 04/28/2025

Action Step Number	Action Step Description	Target Completion Date
1	Engage with partners regarding possible changes.	02/01/2025
2	Draft new document/form and make updates to existing documents/forms.	03/01/2025
3	New document/form created and/or updated; plain language and accessibility standards met. Begin using document/form.	04/28/2025

HEALTH AND SAFETY:PREVENTION AND RESPONSE TO EMERGENCIES FROM FOOD AND ALLERGIC REACTIONS

Reason(s) for non-compliance:

- The Lead Agency has not established a standard for the prevention of and response to emergencies due to food and allergic reactions for license-exempt family child care homes or license-exempt in-home care, as required by 98.41(a)(1)(iv). (Plan Questions 5.3.4av, 5.3.4avi, 5.3.4bv, and 5.3.4bvi)
- The Lead Agency does not require an annual inspection for license-exempt family child care providers for compliance with a standard for prevention of and response to

emergencies from food and allergic reactions, as required by 98.42(b)(2)(ii). (Plan Question 5.5.2bi)

Overall Target Completion Date: 04/28/2025

Action Step Number	Action Step Description	Target Completion Date
1	Engage with partners regarding possible changes	02/01/2025
2	Draft new document/form and make updates to existing documents/forms.	03/01/2025
3	New document/form created and/or updated; plain language and accessibility standards met. Begin using document/form.	04/28/2025

HEALTH AND SAFETY:PREVENTION OF SHAKEN BABY SYNDROME, ABUSIVE HEAD TRAUMA, AND CHILD MALTREATMENT

Reason(s) for non-compliance:

- The Lead Agency has not established a standard for the prevention of shaken baby syndrome, abusive head trauma, and child maltreatment for license-exempt family child care homes or license-exempt in-home care, as required by 98.41(a)(1)(vi). (Plan Questions 5.3.6av, 5.3.6avi, 5.3.6bv, and 5.3.6bvi)
- The Lead Agency does not require an annual inspection for license-exempt family child care providers for compliance with a standard for prevention of shaken baby syndrome, abusive head trauma, and child maltreatment, as required by 98.42(b)(2)(ii). (Plan Question 5.5.2bi)

Overall Target Completion Date: 04/28/2025

Action Step Number	Action Step Description	Target Completion Date
1	Engage with partners regarding possible changes.	02/01/2025
2	Draft new document/form and make updates to existing documents/forms.	03/01/2025

3	New document/form created and/or updated; plain language and accessibility standards met. Begin using document/form.	04/28/2025
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HEALTH AND SAFETY:SUDDEN INFANT DEATH SYNDROME AND SAFE SLEEP

Reason(s) for non-compliance:

- The Lead Agency has not established a standard for the prevention of sudden infant death syndrome and safe sleep practices for license-exempt family child care homes or license-exempt in-home care, as required by 98.41(a)(1)(ii). (Plan Questions 5.3.2v and 5.3.2vi)
- The Lead Agency does not require an annual inspection for license-exempt family child care providers for compliance with a standard for sudden infant death syndrome and safe sleep practices, as required by 98.42(b)(2)(ii). (Plan Question 5.5.2bi)

Overall Target Completion Date: 04/28/2025

Action Step Number	Action Step Description	Target Completion Date
1	Engage with partners regarding possible changes.	02/01/2025
2	Draft new document/form and make updates to existing documents/forms.	03/01/2025
3	New document/form created and/or updated; plain language and accessibility standards met. Begin using document/form.	04/28/2025

COMPREHENSIVE BACKGROUND CHECK:PRE-SERVICE CHECK REQUIREMENTS (PROVISIONAL HIRE)

Reason(s) for non-compliance:

- The Lead Agency does not require a qualifying result from an FBI criminal background check or an in-state criminal background check with fingerprints before a prospective staff member begins work, as required by 98.43(d)(4). (Plan Questions 5.7.12a and 5.7.12b)

Overall Target Completion Date: 01/15/2026

Action Step Number	Action Step Description	Target Completion Date
1	Develop legislative budget proposal and engage with county licensing agencies and provider entities	02/01/2025
2	Introduce legislation and advocate for passage.	03/01/2025
3	Develop and work on system software change requirements for NETStudy 2.0 (if legislation is passed.)	08/01/2025
4	Conduct User Acceptance Testing (UAT) pertinent to NETStudy 2.0 system development changes.	11/01/2025
5	Develop and send communications to announce changes to comply with final rule to counties and provider entities.	12/01/2025
6	Enact policy and deploy NETStudy 2.0 system changes.	01/15/2026

CONSUMER EDUCATION:WEBSITE AND RESOURCES FOR PARENTS

Reason(s) for non-compliance:

- The Lead Agency does not include aggregate data for the total number of children in care by provider category and licensing status when posting data on serious injuries, fatalities, and substantiated cases of child abuse in care, as required by 98.33(a)(5)(iv). (Plan Question 9.2.5aiv)

Overall Target Completion Date: 03/01/2025

Action Step Number	Action Step Description	Target Completion Date
1	Minnesota submitted a clarifying question to federal Office of Child Care.	12/12/2024
2	After response is received, Minnesota will develop a plan to achieve compliance.	03/01/2025

**QUALITY IMPROVEMENT AND SUPPORT FOR CHILD CARE
WORKFORCE:PROFESSIONAL DEVELOPMENT**

Reason(s) for non-compliance:

- The Lead Agency does not have an annual requirement for a minimum number of hours of ongoing professional development for substitutes in licensed child care centers, licensed family child care homes, or license-exempt centers, as required by 98.44(b)(2). (Plan Questions 6.3.1a, 6.3.1b, and 6.3.1c)
- The Lead Agency does not have an annual requirement for a minimum number of hours of ongoing professional development for all staff in license-exempt family child care homes or license-exempt in-home providers, as required by 98.44(b)(2). (Plan Questions 6.3.1d and 6.3.1f)

Overall Target Completion Date: 10/01/2025

Action Step Number	Action Step Description	Target Completion Date
1	Develop legislative proposal and engage with partners.	02/01/2025
2	Manage legislative process and advocate for passage.	05/19/2025
3	Enact policy change, if legislation passes. NOTE: Completion date is August 1, 2025, for licensed centers, licensed family child care providers, and license-exempt centers. Completion date is October 1, 2025, for license-exempt family child care providers.	10/01/2025